INTELLECTUAL PROPERTY ASSIGNMENT AGREEMENT

1. COMMENCEMENT/PARTIES:

THIS ASSIGNMENT OF INTELLECTUAL PROPERTY (this "Assignment") is entered into and made effective as of ___ day of _____, _____ (the "Effective Date"), by and between **Mr. Dickson Joshua Ugochukwu**, an independent contractor/ Lead and App Developer (the "Assignor") of P&T Residential Estate, Ipaja, Lagos, Nigeria, on the one hand, and **Mr. Wisdom Turebari Johnny**, a promoter of a Company under incorporation in Nigeria as of the Effective Date (the "Assignee"), of No. 22 Benson Worlu Street, Rumuodomaya, Rivers State, Nigeria, on the other hand.

2. RECITAL

WHEREAS:

A. The Assignee is acting as a promoter of a company under incorporation in Nigeria (hereinafter referred to as the "Company") and intends that, upon incorporation, all rights, title and interest in the Intellectual Property Rights assigned under this Agreement shall vest in the Company;

B. The Assignor is engaged in the development of a software application known as JhinxPay (the "Application");

C. The Assignor has been engaged by the Assignee as an independent contractor to provide services relating to the development of the Application in the capacity of LEAD AND APP DEVELOPER;

D. In the course of providing such services, the Assignor has created and/or will create certain intellectual property, works, materials, and deliverables;

E. The Parties intend that all intellectual property created by the Assignor in connection with the Application shall vest exclusively in the Assignee, acting as a promoter of the company, and intends that upon incorporation, all rights, title and interest in the Intellectual Property Rights assigned under this Agreement shall vest in the Company.

3. DEFINITION & INTERPRETATION

3.1 Definitions

For the purposes of this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below.

"Intellectual Property"

Means all intellectual property and proprietary rights of any kind, whether registered or unregistered, existing now or in the future, anywhere in the world, including all applications, renewals, extensions, revivals, divisions, continuations, reissues and equivalents thereof, including:

(a) Inventions, discoveries, concepts, ideas, innovations, improvements, methods, processes, systems, techniques and know-how;
(b) Patents, utility models and similar rights;

(c) Copyrights and related rights, including rights in software, source code, object code, firmware, databases, documentation, specifications, designs, text, graphics, audiovisual works and content;
(d) Trade secrets, confidential information and proprietary information;
(e) Trademarks, service marks, trade names, logos, get-up and branding rights;
(f) Design rights, moral rights and rights of personality or publicity; and
(g) Any other rights of a similar nature or effect, whether arising under statute, common law, equity or otherwise, including rights arising from or related to emerging or future technologies.

"Work Product"

Means any and all materials, subject matter, output, results, developments, modifications, enhancements, adaptations, derivative works, discoveries, inventions, concepts, data and information, whether tangible or intangible, that are conceived, created, developed, authored, discovered, reduced to practice or otherwise generated, in whole or in part, directly or indirectly, in the course of or in connection with the performance of this Agreement, regardless of form, medium, technology or stage of completion, and regardless of whether protectable as Intellectual Property.

"Deliverables"

Means all items, materials and outputs required to be delivered, made available or otherwise provided under this Agreement, including all Work Product, reports, files, data sets, software, applications, documentation, specifications, designs, models, prototypes, content and other materials, in any format or medium, whether physical, digital, virtual or otherwise, including interim, draft and final versions.

"Confidential Information"

Means any and all information, in any form or medium, whether disclosed before or after the Effective Date, that is disclosed or made available by or on behalf of a party, directly or indirectly, and that is designated as confidential or that ought reasonably to be understood as confidential given the nature of the information or the circumstances of disclosure, including:

(a) Business, commercial, financial, strategic or operational information;
(b) Technical information, Intellectual Property, Work Product and Deliverables;
(c) Data, databases, algorithms, models, architectures and specifications;
(d) Personal data and information subject to data protection or privacy laws; and
(e) Information derived from, based on or incorporating any of the foregoing, whether or not marked as confidential, and including information stored, transmitted or accessed via any current or future technology.

"Application" or "Software"

Means any and all computer programs, applications, platforms, systems or tools, including source code, object code, scripts, firmware, APIs, libraries, modules, frameworks (UI/ UX Designs), machine learning models, artificial intelligence systems, datasets, training data, configuration files, interfaces and related documentation, whether standalone or integrated, whether cloud-based, distributed, embedded, decentralised or otherwise deployed, and whether existing now or developed in the future, including all updates, upgrades, modifications, enhancements and derivative works.

3.2 Interpretation

(a) References to any technology, medium, format or method include all past, current and future equivalents, replacements and evolutions.
(b) References to "including" or "includes" shall be construed as "including without limitation".
(c) Words in the singular include the plural and vice versa.
(d) References to creation or development include generation by automated, semi-automated, artificial intelligence, algorithmic or other non-human means.

4. ACKNOWLEDGEMENT OF ENGAGEMENT

The Assignor acknowledges that:

(a) All Work Product was or will be created pursuant to the engagement with the Assignee; and
(b) The fees paid or payable to the Assignor constitute sufficient consideration for the assignment of Intellectual Property under this Agreement.

5. PAST, PRESENT AND FUTURE ASSIGNMENT OF INTELLECTUAL PROPERTY

5.1 The Assignor hereby irrevocably assigns, transfers and conveys to the Assignee (acting as promoter of the Company under incorporation, with the intention that all such rights shall vest in the Company upon its incorporation), absolutely and exclusively, all right, title and interest, whether legal or beneficial, in and to all Intellectual Property Rights in the Work Product, including all past, existing, ongoing and future works, inventions, developments, improvements and derivative works, created, developed, conceived or reduced to practice by the Assignor, whether alone or jointly with others, in the course of or in connection with the provision of services to the Assignee.

5.2 The assignment under this Agreement shall apply with immediate effect upon creation of the relevant Work Product and shall operate automatically and without the need for any further act, such that all Intellectual Property Rights therein shall vest in the Assignee, acting as

promoter of the Company under incorporation, with the intention that all such rights shall vest in the Company upon its incorporation, from the moment of creation.

5.3 The assignment effected under this Clause is perpetual, irrevocable, exclusive and worldwide, and includes, without limitation, the right to use, reproduce, modify, adapt, publish, distribute, license, assign, commercialise, exploit and enforce the Intellectual Property Rights in any manner and in any medium, whether previously known, now known or hereafter developed.

5.4 To the extent that any Intellectual Property Rights do not vest in the Assignee automatically by operation of law or under this Agreement, the Assignor hereby assigns such rights to the Assignee, acting as promoter of the Company under incorporation, by way of present assignment of future rights. All such rights shall vest in the Assignee immediately upon coming into existence and shall automatically transfer to the Company upon its incorporation, without further act or consideration.

5.5 The Assignor acknowledges and agrees that, except as expressly authorised in writing by the Assignee acting as promoter of the Company under incorporation, the Assignor shall retain no ownership, licence or other interest in the Intellectual Property Rights assigned under this Agreement.

6. ASSIGNMENT OF COPYRIGHT

6.1 The Assignor hereby irrevocably assigns, transfers and conveys to the Assignee acting as promoter of the Company under incorporation, with the intention that all such rights shall vest in the Company upon its incorporation, absolutely and exclusively, all right, title and interest in and to all copyright and neighbouring rights subsisting in the Work Product, whether created before, existing as at, or created in the future, throughout the world and for the full duration of such rights.

6.2 Without limiting the generality of Clause 6.1, the copyright assigned under this Agreement includes copyright in:

(a) source code and object code, including all versions, updates, modifications and derivatives;
(b) software architecture, algorithms, APIs and databases;
(c) user interface (UI) and user experience (UX) designs, wireframes, layouts, graphic designs and visual elements;
(d) technical documentation, manuals, specifications, flowcharts and design documents; and
(e) any other copyright-protected works created by the Assignor in the course of or in connection with the services provided to the Assignee.

6.3 The assignment under this Clause shall apply whether or not the Work Product is registrable, whether completed in whole or in part, and whether created individually or jointly with others, and shall take effect immediately upon the creation of the relevant Work Product.

6.4 The Assignor acknowledges that the Assignee, acting as promoter of the Company under incorporation, with the intention that all such rights shall vest in the Company upon its incorporation, shall be entitled to exercise all exclusive rights of copyright ownership, including the rights to reproduce, publish, adapt, translate, communicate to the public, distribute, license, assign, commercialise and otherwise exploit the Work Product without restriction.

6.5 The Assignor confirms that this assignment is made in writing and for valuable consideration, in accordance with the Copyright Act 2022 and all applicable laws of the Federal Republic of Nigeria.

7. ASSIGNMENT OF OTHER INTELLECTUAL PROPERTY RIGHTS

7.1 The Assignor hereby irrevocably assigns, transfers and conveys to the Assignee, acting as promoter of the Company under incorporation, with the intention that all such rights shall vest in the Company upon its incorporation, absolutely and exclusively, all right, title and interest in and to all non-copyright Intellectual Property Rights in the Work Product, whether existing now or arising in the future, whether registrable or unregistrable, registered or unregistered, and wherever in the world such rights may subsist.

7.2 Without limiting the generality of Clause 7.1, the Intellectual Property Rights assigned under this Clause include:

(a) all patentable and non-patentable inventions, discoveries, innovations, processes, methods, systems and improvements, whether or not capable of patent protection at the time of creation;
(b) all industrial designs, layouts, models, visual designs, graphical user interfaces and aesthetic features, whether or not registered or registrable;
(c) all trade secrets, confidential technical information, proprietary data, business logic, formulas, workflows and internal processes; and
(d) all know-how, technical knowledge, skills, experience and methodologies developed or acquired by the Assignor in the course of or in connection with the provision of services to the Assignee.

7.3 The assignment under this Clause shall apply irrespective of whether any such Intellectual Property Rights are capable of registration, have been registered, or are intended to be registered in any jurisdiction, and shall take effect immediately upon creation of the relevant Work Product.

7.4 The Assignor acknowledges that the Assignee, acting as promoter of the Company under incorporation, with the intention that all such rights shall vest in the Company upon its incorporation, shall have the sole and unrestricted right to apply for, prosecute, maintain, enforce, license, assign and otherwise exploit any such Intellectual Property Rights at its discretion, without any further consent or involvement of the Assignor.

7.5 The Assignor confirms that no rights in the Intellectual Property assigned under this Clause are reserved, retained or licensed back to the Assignor. Any reservation of rights or licence-back shall be effective only if expressly agreed in writing by the Assignee (acting as promoter of the company prior to its incorporation) or following incorporation, by the company itself.

8. WORKS MADE FOR HIRE

8.1 The Assignor acknowledges and agrees that all Work Product created, developed, conceived or reduced to practice by the Assignor in the course of or in connection with the provision of services to the Assignee is specially commissioned by the Assignee (acting as promoter of the Company under incorporation), and is intended to be a "work made for hire" to the fullest extent permitted by applicable law.

8.2 To the extent that any such Work Product does not qualify as a work made for hire under the laws of the Federal Republic of Nigeria or any other applicable law, the Assignor hereby irrevocably assigns to the Assignee (acting as promoter of the Company under incorporation with the intention that all such rights shall vest in the Company upon its incorporation), by way of past and present assignment, all right, title and interest in and to all Intellectual Property Rights in such Work Product, in accordance with Clauses 5, 6 and 7 of this Agreement.

8.3 The Assignor agrees that the Assignee, acting as promoter of the Company under incorporation, with the intention that all such rights shall vest in the Company upon its incorporation, shall be deemed the sole author, creator and owner of the Work Product for all purposes, including for purposes of registration, exploitation, enforcement and commercialisation, and the Assignor shall not assert any claim inconsistent with such ownership.

9. MORAL RIGHTS WAIVER

9.1 The Assignor hereby waives, to the fullest extent permitted by law, all moral rights in the Work Product, including the rights of:

(a) paternity/attribution (the right to be identified as the author or creator of the Work Product); and

(b) integrity (the right to object to any modification, adaptation, translation, or other alteration of the Work Product that may be prejudicial to the Assignor's honour or reputation).

9.2 To the extent that any moral rights cannot be waived under applicable law, the Assignor agrees not to assert or enforce such rights against the Assignee, its affiliates, licensees, successors, or assigns.

9.3 The Assignor acknowledges that the waiver and non-assertion of moral rights is essential to the full commercial exploitation, modification, licensing and enforcement of the Work Product by the Assignee, and forms part of the consideration for the assignment of Intellectual Property Rights under this Agreement.

9.4 This waiver and agreement not to assert moral rights shall survive the termination of this Agreement and remain enforceable in perpetuity.

10. REPREPRESENTATIONS AND WARRANTIES

10.1 The Assignor represents and warrants to the Assignee (acting as a promoter for the Company under incorporation) that:

(a) the Work Product is original to the Assignor and has been created by the Assignor independently or with lawful authority, and does not infringe the intellectual property or other rights of any third party;
(b) the Assignor has full power, right and authority to enter into this Agreement and to assign the Intellectual Property Rights in the Work Product to the Assignee as provided herein;
(c) the Work Product is not subject to any lien, charge, licence, assignment, restriction or encumbrance, and the Assignor has not granted and will not grant any rights inconsistent with the rights assigned to the Assignee under this Agreement;
(d) the Assignor is not bound by any agreement, obligation or restriction (including any prior employment, consultancy or confidentiality agreement) that would conflict with or limit the assignment of Intellectual Property Rights under this Agreement;
(e) the Work Product does not contain any viruses, malware, malicious code, backdoors, time bombs or other disabling devices designed to disrupt, damage or interfere with the operation, security or integrity of any software, system or data; and
(f) the Assignor has disclosed to the Assignee all material information known to the Assignor relating to the Work Product that may reasonably affect the Assignee's ownership, use or exploitation of the Intellectual Property Rights assigned under this Agreement.

10.2 The Assignor acknowledges that the Assignee (acting as a promoter for the Company under incorporation) is entering into this Agreement in reliance on the representations and

warranties contained in this Clause, which shall survive the execution and termination of this Agreement.

11. INDEMNITY

11.1 The Assignor shall indemnify, defend and hold harmless the Assignee its directors, officers, employees, agents, successors and assigns from and against all losses, liabilities, damages, costs and expenses (including reasonable legal fees) arising out of or in connection with:

(a) any actual or alleged infringement of any intellectual property or proprietary rights of a third party arising from the Work Product or the Assignee's lawful use or exploitation of the Work Product;
(b) any breach of the representations and warranties given by the Assignor under this Agreement; or
(c) any third-party claim, demand or action arising from or relating to the creation, development, delivery or use of the Work Product, to the extent caused by the acts or omissions of the Assignor.

11.2 The indemnity under this Clause shall apply whether or not the relevant claim arises during or after the termination of this Agreement and shall survive termination.

11.3 The Assignor's liability under this Clause shall be limited to losses to the extent caused by the Assignor's breach of this Agreement, negligence or wilful misconduct, and shall not apply to the extent that such losses arise from the Assignee's material modification or misuse of the Work Product without the Assignor's involvement.

12. FURTHER ASSURANCES

12.1 The Assignor agrees, both during and after the term of this Agreement, to execute all such documents and do all such acts and things as the Assignee may reasonably require to perfect, evidence, maintain, register, enforce or protect the Intellectual Property Rights assigned under this Agreement.

12.2 Without limiting Clause 12.1, the Assignor shall, upon reasonable request and at the Assignee's cost, assist in the preparation, filing, prosecution and maintenance of any applications or registrations relating to the Intellectual Property Rights in any jurisdiction, including for the purposes of investment, financing, restructuring or sale of the Assignee's business.

12.3 Where the Assignor is unwilling, unable or unavailable to execute any document required to give effect to this Agreement, the Assignor irrevocably appoints the Assignee as the

Assignor's attorney to execute such document on the Assignor's behalf solely for the purpose of giving effect to the assignment of Intellectual Property Rights under this Agreement.

12.4 The obligations under this Clause shall survive the termination of this Agreement and remain binding on the Assignor without limitation in time.

13. NO RETAINED RIGHTS

13.1 Except as expressly stated in this Agreement, the Assignor retains no right, title, interest or licence, whether legal or equitable, in or to the Work Product or any Intellectual Property Rights assigned to the Assignee under this Agreement.

13.2 The Assignor acknowledges and agrees that no licence or other right is granted or implied in favour of the Assignor by reason of this Agreement, the creation of the Work Product, or the payment of consideration.

13.3 The Assignor shall not, without the prior written consent of the Assignee, reproduce, reuse, modify, commercialise, disclose, distribute or otherwise exploit the Work Product or any part thereof, whether for personal, commercial or third-party purposes.

13.4 Any unauthorised use or exploitation of the Work Product by the Assignor shall constitute a material breach of this Agreement and shall entitle the Assignee to all remedies available under law.

14. INDEPENDENT CONTRACTOR

14.1 The Assignor acknowledges and agrees that, in performing the services and creating the Work Product under this Agreement, the Assignor acts solely as an independent contractor and not as an employee, partner, agent or joint venturer of the Assignee.

14.2 Nothing in this Agreement shall be construed as creating any employment relationship, contract of service or entitlement to employee benefits, including but not limited to pension contributions, gratuities, leave entitlements, insurance or severance benefits.

14.3 The Assignor shall be solely responsible for all taxes, levies and statutory obligations arising from any consideration received under this Agreement and shall have no authority to bind or represent the Assignee in any manner.

15. CONSIDERATION

15.1 In consideration of the sum of One Hundred Naira only (₦100.00), the receipt and sufficiency of which the Assignor hereby acknowledges, together with any other fees already paid or payable to the Assignor in respect of the services rendered, the Assignor irrevocably assigns the Intellectual Property Rights in accordance with this Agreement.

15.2 The Assignor agrees that the consideration stated in this Clause constitutes adequate and sufficient consideration for the assignment of all rights, title and interest in the Work Product and Intellectual Property Rights to the Assignee.

16. GOVERNING LAW

16.1 This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Nigeria.

17. DISPUTE RESOLUTION

17.1 The parties agree that any dispute, claim or controversy arising out of or in connection with this Agreement, including its existence, validity, interpretation, performance or termination, shall be subject to the exclusive jurisdiction of the High Court of Rivers State.

17.2 Each party irrevocably submits to the jurisdiction of the High Court of Rivers State and waives any objection to proceedings in that court on the grounds of venue or forum non conveniens.

18. ENTIRE AGREEMENT

18.1 This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior or contemporaneous agreements, understandings, negotiations or representations, whether written or oral.

18.2 Each party acknowledges that, in entering into this Agreement, it has not relied on any statement, representation, warranty or undertaking not expressly set out in this Agreement.

19. AMENDMENTS

19.1 No amendment, modification or variation of this Agreement shall be valid or effective unless it is in writing and signed by both parties.

20. SEVERABILITY

20.1 If any provision of this Agreement is found to be invalid, illegal or unenforceable in any jurisdiction, such provision shall be severed to the minimum extent necessary, and the remaining provisions of this Agreement shall continue in full force and effect.

21. WAIVER

21.1 No failure or delay by either party in exercising any right, power, or remedy under this Agreement shall operate as a waiver of that right, power, or remedy, nor shall any single or partial exercise of any right, power, or remedy preclude any other or further exercise of that right, power, or remedy.

22. COUNTERPARTS & ELECTRONIC SIGNATURES

22.1 This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

22.2 The parties agree that electronic signatures (including scanned, PDF, DocuSign, or other digital formats) shall be valid and binding as if originals, and may be relied upon for all purposes.

23. EXECUTION CLAUSE

23.1 This Agreement is executed as a deed and is effective as of the date first written above.

23.2 IN WITNESS WHEREOF, the parties have executed this Agreement by their duly authorised representatives in the manner below the date first above written.

SIGNED, SEALED AND DELIVERED
By the within named Assignor

Name: Mr. Dickson Joshua Ugochukwu
Address: P&T Residential Estate, Ipaja, Lagos, Nigeria
Occupation: Lead and App Developer
Signature: _____
Date: _____

IN THE PRESENCE OF

Name: _____
Address: _____

Occupation: _____
Signature: _____
Date: _____

SIGNED, SEALED AND DELIVERED
By the within named Assignee

For and on behalf of the Company under incorporation:

Name: Mr. Wisdom Turebari Johnny
Capacity: Promoter
Address: No. 22 Benson Worlu Street, Rumuodomaya, Rivers State, Nigeria
Occupation: Student
Signature: _____
Date: _____

IN THE PRESENCE OF

Name: Miss Favour Biadum Johnny
Address: No. 22 Benson Worlu Street, Rumuodomaya, Rivers State, Nigeria
Occupation: Entrepreneur
Signature: _____
Date: _____